

As to the overall time period of delay, essentially 1 year has elapsed between the attempted filing of the stipulation and the instant motion. Even if we give Defendants the benefit of the doubt and reduce the effective time period of the delay due to the default issue, we have an unexplained delay from July 2025 through the end of January 2026.

Another factor is the failure to engage in mediation as agreed. *Quach* noted a concern where compelling arbitration would “create undue delay and gamesmanship going forward.” (*Quach, supra*, at p.586) Even if the promise to mediate is viewed as an independent obligation from the promise to arbitrate, there is an element of undue delay and gamesmanship under these circumstances by failing to mediate and allowing this case to drag out. Ultimately this case was filed in October 2024, nearly 2 years ago, and we have yet to reach first base.

Defendants shall file a responsive pleading within 10 days.

Plaintiffs shall prepare and submit a form of order consistent with this ruling within 10 days.

4. 25CV01698 Shamir Insight, Inc v. Paradise Lens Lab LLC

EVENT: Plaintiff's Motion for Judgment Pursuant to Stipulation for Settlement of Judgment (CCP 664.6)

Plaintiff's Motion for Judgment Pursuant to Stipulation for Settlement of Judgment is GRANTED. The Court will sign the proposed order and judgment.

5. 25CV02868 Elite Acceptance Corp v. Vanpoole, Brandi Leanne

EVENT: Opposition to claim of exemption

The Court will conduct a hearing.

6. 26CV01665 Perondi, Christopher v. Bingaman, Renee

EVENT: Defendant Renee Bingaman's Motion for Summary Judgment or in the Alternative Summary Adjudication

Defendant Renee Bingaman's Motion for Summary Judgment or in the Alternative Summary Adjudication is DENIED WITHOUT PREJUDICE for failure to comply with the notice requirements of CCP 437c(a)(2). Pursuant to *Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267-1268, the Court has no authority to continue a summary judgment motion to cure the notice defect. Rather Defendant must refile and serve the motion in accordance with the notice requirements of CCP 437c(a)(2).

7-8. 26CV01872 Davis, Katherine v. Arredondo Group Inc et al.

*EVENT: (1) Defendant Wells Fargo Bank, N.A.'s Demurrer to Plaintiff's Complaint
(2) Defendant Adesa California LLC's Demurrer to Plaintiff's Complaint*

In light of the First Amended Complaint filed on August 26, 2026, the demurrers are moot.

9. 26CV02234 Grayson, John I, IV v. Internal Revenue Service

EVENT: "Tentative Ruling Order Motion" (Continued from 8/26/26)

The case is dismissed with prejudice for lack of jurisdiction. State courts do not have jurisdiction over the Internal Revenue Service nor does it have subject matter jurisdiction over federal tax disputes. (See *Civiletti v. Municipal Court* (1981) 116 Cal.App.3d 105, 109; 28 USCS 1346)